

25STLC05720 25STLC05720

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-23

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Case Number: 25STLC05720 Hearing Date: June 23, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Creditors

Adjustment Bureau, Inc.'s Motion to Strike Answer of Defendant Fin Creative Concepts, LLC, is denied.

On its own motion, the Court sets

an Order to Show Cause Re: Status of Defendant Fin Creative Concepts, LLC's Legal Representation for 07/21/2026

at 9:30 am in Department 26 in the Spring Street Courthouse.

ANALYSIS:

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff")

filed the instant action against Defendant Fin Creative Concepts, LLC ("Defendant") on July 25, 2025.

Defendant filed an Answer to the Complaint on January 28, 2026.

Plaintiff filed the instant Motion to Strike Answer on March

10, 2026. The Motion was served on Defendant by first-class mail on the same

day. No opposition has been filed to date.

Discussion

The Motion to Strike Answer is brought pursuant to Code of

Civil Procedure section 436 on the grounds that Defendant, despite being a

corporation, was not represented by an attorney at the time the Answer was

filed. Instead, the Answer is signed by "Michael Flannagan," who does not

indicate that they are a licensed attorney. (Answer, filed 01/28/26, p. 2.)

However, motions to strike in the Limited Civil Court may

only challenge pleadings on the basis that "the damages or relief sought are

not supported by the allegations of the complaint." (Code of Civ. Proc., § 92,

subd. (d).) The instant Motion to Strike Answer does not pertain to whether the

damages or relief sought are supported by the allegations, and therefore,

cannot be raised in this Court.

That being said, it is black letter law that a corporation cannot represent

itself in court. (Clean Air Transport Systems v. San Mateo County Transit

Dist. (1988) 198 Cal.App.3d 576, 578 (citing Merco Constr. Engineers,

Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729-730).) This rule applies

to all entities regarded as separate from their owners, including partnerships

and unincorporated associations. (See Clean Air Transport Systems,

supra, 19 Cal.App.3d at 578.) Defendant's Answer does not indicate it was filed

by a licensed attorney. Therefore, the Court finds Defendant filed the Answer

without proper legal representation and cannot appear without an attorney

going forward.

The Court sets an order to show

cause on the date below. If Defendant

Fin Creative does not appear through counsel on that date, the Court will

strike the Answer.

Conclusion

Plaintiff Creditors

Adjustment Bureau, Inc.'s Motion to Strike Answer of Defendant Fin Creative Concepts, LLC, is denied.

On its own motion, the Court sets

an Order to Show Cause Re: Status of Defendant Fin Creative Concepts, LLC's Legal Representation for 07/21/2026

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Moving party to give notice.